Since Dad Signed His Papers: Family Changes Worth Writing Down for the Next Review

Fifteen everyday things about family, home and property to notice and note, with no interpreting.

Dad's will was signed a long time ago, and life has gone on since: a wedding, a move, a new grandchild. This guide names fifteen everyday things worth noticing and, for each, what to write down beside the date a document was signed.

Notice and record. Don't interpret. Whether a change matters to one of Dad's papers is a question for an elder law attorney, and a dated list is what makes that conversation useful. The idea of looking again when life changes follows AARP's legal checklist for family caregivers and the Consumer Financial Protection Bureau's guides; the wording about what to write down is ours.

The papers themselves

1 The date on each paper

NOTICE The signing date on the will, the financial power of attorney, the health care papers and any trust.

WRITE DOWN Each date beside the name of the document. “No date found” and “haven't seen it” are worth writing too.

2 Papers you've heard about but not seen

NOTICE Remarks like “the attorney has the original” or “it's in the box at the bank.”

WRITE DOWN Who said it, when, and where they think the paper is.

3 Where the papers are kept now [1]

NOTICE A desk that moved, a bank box that was closed, a law office that changed hands, a folder that went to a sibling's house.

WRITE DOWN Where each paper is today, and who has a copy or a key.

The people the papers name

4 Who is named [2] [3]

NOTICE The names on the page: an agent and a successor agent, a health care proxy, a trustee and a successor trustee.

WRITE DOWN Each name exactly as written, and the document it appears in.

5 Changes in a named person's life [4]

NOTICE A move to another state, a change in their own health, a job that keeps them away, a death.

WRITE DOWN What changed and roughly when, as a fact. Whether it matters to the document is a question for an attorney.

6 Changes in relationships [4]

NOTICE A marriage, a divorce, a falling-out or a reconciliation involving someone a document names.

WRITE DOWN The event and the year, with no opinion attached.

7 Who knows what [5]

NOTICE Whether the people named know they are named, and whether they know where the papers are.

WRITE DOWN Who has been told, and by whom.

The family

8 Marriages, divorces and new partners [1]

NOTICE In Dad's own life or in his children's.

WRITE DOWN Who, and the year.

9 Births and deaths

NOTICE A new grandchild or great-grandchild. The death of a spouse, a sibling or a close friend.

WRITE DOWN The name and the year.

10 Who has started lending Dad a hand

NOTICE A daughter who now sorts the mail, a son who sits in on appointments, a neighbor who drives him.

WRITE DOWN Who helps with what, and since when. Describe it. Don't decide what it means.

Home, property and accounts

11 A move, or plans for one

NOTICE A new address, a house put up for sale, talk of moving nearer to family.

WRITE DOWN From where, to where, and when, including a move across a state line.

12 The house and other property

NOTICE A sale, a purchase, a refinance, a name added to a deed or taken off one.

WRITE DOWN What happened and when, and whose names are on the deed as far as you know. Mark anything unconfirmed.

13 Accounts, policies and beneficiary forms [2]

NOTICE An account opened or closed, a second name added to one, a new or lapsed insurance policy, a beneficiary form filled in.

WRITE DOWN Which account or policy, whose names, and when. Change nothing. The Consumer Financial Protection Bureau's guide for agents says to get legal advice before making any change to a joint account.

Conversations

14 Changes someone has suggested [2]

NOTICE “Put the house in the kids' names.” “You need a trust.” Something a neighbor's family did.

WRITE DOWN Who suggested what, and when, written as a question for an elder law attorney. Nothing gets done from a note.

15 What Dad says he wants [1]

NOTICE Remarks about who he'd want handling things, where he'd want to live, what he hopes for the house.

WRITE DOWN His words, with the date. They come first at any review.

When a note isn't enough

A note is for something that has already happened. When someone is about to sign, change or cancel one of Dad's papers, or to change how a home or an account is owned, that is a question for an elder law attorney first, and the note goes with it. How the papers fit into planning to pay for care is a question for your Medicaid planner. This guide sets no threshold: if you can't tell whether a change matters, write it down and ask.

What this guide doesn't do

It doesn't say what any of these changes means for a document, for Medicaid or for Dad's plan, and it isn't legal, financial or tax advice. An elder law attorney does that, and does it better with your dated notes in front of them.

Ready for the next step?

You've noticed what has changed since Dad signed, and written it down. The planning interview asks about your family's situation as it is today and gives you a free planning report you can bring to any conversation about paying for care.

Get Your Free Planning Report ›

WHERE THIS COMES FROM

1. AARP, A Legal Checklist for Family Caregivers
2. Consumer Financial Protection Bureau, Managing someone else's money: Help for agents under a power of attorney
3. Consumer Financial Protection Bureau, Managing someone else's money: Help for trustees under a revocable living trust
4. Consumer Financial Protection Bureau, Considering a financial caregiver? Know your options
5. Consumer Financial Protection Bureau, What is a power of attorney (POA)?